

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

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Date Submitted
11/16/2023 7:20 AM

Entry Number
6,165

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
Andrea Elizabeth Flint

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

11/13/2023, 10/25/2023, 10/24/2023, 09/13/2023, 09/07/2023, 08/01/2023, 07/31/2023, 06/29/2023

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

Kostiantyn Mars

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Commission on Judicial Performance

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ADDITIONAL EVIDENCE OF JUDGE FLINT REPETITIVE MISCONDUCT
ON PARTIAL TRIAL NOVEMBER 13, 9:00 AM

Dear Staff Counsel Tania Schrag and Members of the Commission on Judicial Performance,

Please find below additional list of evidence as a 2nd, additional response to your request from October 30, 2023, which includes video recordings of Judge Flint intentional, severe repetitive misconduct and repetitive violation of CCP 170.1, 170.3 on partial trial on November 13, 9:00 AM.

**I. BRIEF HISTORY OF THE CASE AND GROUNDS FOR SUSPECT OF JUDGE FLINT'S
BRIBERY**

I.1 Disclaimer:

I do understand that historically Judges and attorneys are actively ignoring law and manipulating Court system in cases against self-represented parties, because they feel absolutely above the Law, assuming that self-represented party is vulnerable and defenseless. But self-represented today gets attorney tomorrow – while Law exists for everybody always.

I would also emphasize that Law and Justice are equal for everybody – both parties who are represented by attorney, and parties who are self-represented. And Judge is legally obliged to serve the Law, not to manipulate the Law.

I would also emphasize that this case is solely about SAVING LIFE OF A MINOR CHILD, whos biological mother was beating child, physically and emotionally abusing child, and promised me, father, to “bury

our child in Ukrainian soil, so you will never see him again”.

All the falsifications and manipulations over Court system that Judge Flint does (which is suspected to happened because of bribe that Judge Flint received from Respondent in April 2023), serve sole goal to facilitate abduction of my son outside of the United States by biological mother-abuser, who completely destroyed life of my son, destroyed peaceful nurturing environment that I was building for my child, violently removed father from Child's life, kicked out from home and put into terminal condition defenseless 95 years old senior woman with disabilities, and is attempting to re-issue passport to abduct my son outside of the United States with the help of Judge Flint.

I do believe that regardless of power and amount of falsifications that Judge Flint does, my son deserves to survive these years of terror, and deserves to have support from loving father in his life.

My child is not an automatic money-making tool, used by Respondent while living in Ukraine, getting automated payments, after she (as she threatened me) will “bury our child in Ukrainian soil so you will never see him again”.

My son is a PERSON, and he deserves to be respected and to have love and support from his parents. Not to be bluntly used as money-making tool, while he is abducted and held hostage without any contact (and even without working phone – because mother is pulling out sim card and not allowing my son to even have a call with the father, while facilitating abduction).

No Judge has right to take away freedom from minor child and sentence him to death abroad, simply to get rid of witness of bribery.

Judge Flint completely ignored all evidence and witness statements, and absolutely unreasonably granted full custody to mother-abuser, and ordered no contact to father (even no phone calls, only paid supervised visitations, without any basis for that), knowing that child is already in terrifying situation of a hostage.

Basis for such further decisions of Judge Flint is falsifications of Court records and removal of Emergency Screener Recommendations, made by Judge Flint on her sole discretion on 06/29/2023.

Judge's role is to make determination of the best interest of the child (Family Code Sections 3011 https://www.courts.ca.gov/documents/BTB_23_20_1.pdf). Even in cases of proven domestic violence (which never was in our case, because Respondent's attorney dismissed trial on opposing DVROs, trying to avoid evidence and witness statements to be ever seen and heard), the guiding principle for Family Court Judges is “frequent and continuing contact with both parents” (Sec. 3020(b), Sec. 3040(a), Sec. 3044(a)(a)). Judge Flint completely ignored Family Code and on sole discretion ordered no contact to primary parent, father, who was violently removed from child's life.

1.2 Brief history of this case and Judge Flint misconduct:

On 10/25/2023 Judge Flint confirmed personal financial interest in the case, when she removed everybody from courtroom and Teams to get rid of witnesses (and named it “confidential hearing”), and stated that she doesn't care about allegations of bribery and doesn't care about obvious conflict of interest, demonstratively refused to recuse 7 (SEVENTH) time in a row, said that she will preside over this case despite law, and threatened to punish me on upcoming partial trial on 11/13/2023, 9:00 AM.

I do believe that Judge is in severe intentional and repetitive violation of the Law, and I do believe that Judge, who has personal conflict of interest with the party in the case (or personal interest in the case) is

legally obliged to recuse themselves from the case pursuant CCP 170.1, 170.3, and specifically Code Civ. Proc. 170.1(a)(6)A(iii); 170.1(a)(3)A; 170.3

I am self-represented father, and Judge works in pair with absolutely unethical and extremely aggressive attorney Nancy L Roberts, who represents biological mother who is suspected in bribing Judge Flint in April 2023, and who is attempting with the help of Judge Flint to obtain new passport of my son, and abduct my son outside of the United States to Ukraine with the threat to “bury our son in Ukrainian soil so you will never see him again”.

Judge Flint facilitated abduction of my son with series of consecutive intentional wrongful orders, including: absolutely unreasonable removal of signed Emergency Screener Recommendations (06/29/2023) without any consideration, denying Child Abduction Prevention Orders 3 (THREE) times in a row, denying Minor’s Counsel, denying Parenting Counseling, denying Mental Health Treatment to Respondent (recommended by Emergency Screener together with Child Abduction Prevention Orders because of documented history of child abduction by Respondent in 2019-2020, and documented history of child and elderly abuse).

Judge Flint knowingly and intentionally granted full custody to Respondent and no contact to Petitioner (only paid supervised visitations that Petitioner cannot afford), despite documented history of child and elderly abuse (Respondent abducted child with falsified DVRO, signed by Judge Towery, who recused immediately after signing it, most probably because of scandal about his bribery; Respondent kicked from home and caused irreparable terminal condition to defenseless 95 years old senior woman with disabilities).

Judge refused to review any of about 50 pieces of evidence and witness statements. Refused to review and unreasonably removed signed Emergency Screener Recommendations.

All orders of Judge during hearings starting April 2023 are obviously solely in favor of Respondent, and it is suspected that Respondent bribed Judge Flint in April 2023, when her parents brought lump sum of untraceable cash across American border.

Back on 06/29/2023 Judge Flint ordered me, caring father and primary parent, to abandon my son and allow abduction of my son outside of the United States by violent abuser who promised me to “bury our child in Ukrainian soil so you will never see him again”.

Massive financial sanctions from Judge, together with no contact orders and only paid visitations make it’s impossible for me to keep regular visitations schedule – and Respondent’s attorney already requested to issue new passport for abducted child, using lack of visitations as formal legal basis.

Again, lack of visitations was enforced by Judge’s completely wrongful and harmful orders and massive financial sanctions that push Petitioner into complete financial collapse, and do not leave funds to cover paid visitations.

Altogether massive financial sanctions and lack of visitations are used by Judge Flint to facilitate re-issuing new passport and abduction of my son outside of the United States by Respondent, violent abuser with documented history of child abduction.

It is suspected that complete isolation of my son and facilitation of upcoming abduction outside of the United States is used by Judge Flint to get rid of witness of bribery – because my son is forced to live with mother, was present when lump sum of cash was brought to United States, and most probably heard or even saw facts about facilitation of bribe. But according to rules of paid supervised visitations, we are prohibited to talk freely, and are always interrupted by supervisors if we touch topics related to Respondent, bribery or Court. Judge Flint ordered us to never talk.

II. EVIDENCE FROM PARTIAL TRIAL 11/13/2023

On 11/13/2023 Judge Flint as usually ensured that no witnesses from other hearings are present in courtroom and Teams. Judge Flint thoroughly completed all other cases and left only our case to be the last one.

In the beginning there were 12 people in Teams and about 4 people in courtroom (approximately, because some were coming in, some coming out).

3 cases were heard, but our case 22FL003144 was left to be the last one.

Judge did not kick observers from Teams – but there were no people from other cases, only witnesses, who I personally invited to observe trial, taking into account threats of Judge Flint to punish me on this trial, and threats of Judge Flint to make final custody orders on this trial (despite custody matter is legally bifurcated from finalization of divorce and we have another Custody hearing in January).

Please find the list of video recordings from trial 11/13/2023 below:

1. Short video 1 - Judge interrupted, muted and kicked from Teams Petitioner for request for recusal stated on record: <https://youtu.be/UfzHqrWf05Y>
Specifically – Petitioner stated on record that “Judge who has personal conflict of interest with the party in the case (or personal interest in the case) is legally obliged to recuse themselves from the case pursuant CCP 170.1, 170.3, and specifically Code Civ. Proc. 170.1(a)(6)A(iii); 170.1(a)(3)A; 170.3”
Judge refused to recuse, interrupted, muted and kicked Petitioner from Teams for stating on record request to obey the law and recuse.
2. Short video 2 - Judge completely ignored request for recusal, statement on record about impermissible and undeniable personal conflict of interest, and intentionally, repetitively refused to recuse in violation of CCP 170.1, 170.3: <https://youtu.be/apGq2b7BpI8>
3. Short video 3 - Judge completely ignores personal conflict of interest with Petitioner, and continues trial in violation of CCP 170.1, 170.3 <https://youtu.be/pHKPRO3vQil>
Few minor things to notice: Respondent's attorney Nancy L Roberts substantially lies to Court, and Judge accepts her lies, while interrupting and muting Petitioner with any objection
4. Short video 4 - Judge continues trial completely ignoring obvious conflict of interest with Petitioner, and mutes Petitioner instead of recusal pursuant CCP 170.1, 170.3
<https://youtu.be/2yRup1Iq4zs>
I stated on record that Judge facilitates abduction of my son outside of the United States through series of consecutive intentional harmful and wrongful orders. I requested Judge Flint to obey the law and recuse. Judge mutes me, and proceeds in violation of CCP 170.1, 170.3
5. Short video 5 - Petitioner reminds Judge about criminal prosecution for bribery, and Judge mutes petitioner <https://youtu.be/yGO2ApfYBr0>
6. Short video 6 - Judge mutes Petitioner for statement about Respondent's evidence that were not served, were never filed with Court and cannot be used in trial <https://youtu.be/3YHXObGBdcc>
Personal note: I would expect trial to be in order, and Judge to obey the Law. Instead, it looks like with Judge Flint extremely unethical attorney could present evidence that was not served, and admitting this violation to Judge leads to Judge interrupting and muting me
7. Short video 7 - Judge interrupts and mutes Petitioner to ensure that mention of Judge's wrongful order assigning September 15 as date of separation to commemorate and endorse violence of Respondent against minor child and defenseless 95 years old senior woman with disabilities, will not be

recorded and will not be heard <https://youtu.be/sb75hxU8IEM>

Personal note: Respondent used falsified DVRO based on defamatory false allegations, with signature of Judge Towery (who resigned from court immediately after that falsified DVRO, allegedly due to scandal about bribery), to abduct my son and kick out from home my grandmom, defenseless 95 years old senior woman with disabilities, who Respondent attempted to kill few times, and finally put into terminal condition with that falsified DVRO.

Judge Flint knows factual basis of this case, and endorses violence of Respondent by ordering date of separation on September 15, when Respondent put defenseless 95 years old senior woman with disabilities into irreparable terminal condition, and abducted my son, with threats to "bury our child in Ukrainian soil so you will never see him again"

Evidences for trial on opposing DVROs were never seen by anybody, because Judge Flint and Nancy L Roberts dismissed trial.

Hearing 09/05/2023 to review and vacate DVROs was dismissed by Judge Flint without consideration – same way, completely ignoring all evidence and witness statements.

8. Short video 8 - Judge overrules Petitioner's points on facts and balances, but support unethical behavior and lies of Respondent's attorney <https://youtu.be/RCMaH8JnPBM>

9. Short video 9 - Judge dismissed and refused to consider all Petitioner's bank statements, dismissed Petitioner's Equalization payment balance sheet, and denied continuance requested by Petitioner to provide additional evidence that Judge just requested by herself. Instead Judge pushes Petitioner to accept wrongful orders based solely on requests of Respondent's attorney, that completely ignore community balance of assets and debts <https://youtu.be/RCMaH8JnPBM>

Personal note: I don't care about those ~\$6,000 that Judge Flint ordered me to pay. I can't get them anyways – in my current financial collapse it's impossible. I most probably will file for bankruptcy and move on, suffering consequences for the next 7-10 years.

But it is obvious that based on balance of community assets and debts Respondents owes to Petitioner about ~\$34,000 of equalization payment. Judge Flint rules solely in favor of Respondent and completely ignores balance of community assets and debts. Instead Judge uses Respondent's attorney position that all the debts are left completely on Petitioner, and Respondent is requesting and getting granted half of hypothetical assets (which were spent completely on attorney and expert fees during divorce process). With that said, Respondent's attorney added two credit cards with some minor amounts (about ~\$300) so it looks like some credit cards were taken into account.

Worth to mention that Respondent's attorney completely refused to provide any proofs of income, and even refused to serve Respondent's bank statements. And Judge supported this bluntly wrongful position, because feels above the Law in case against self-represented party.

If we would divide a house that costs few millions, or some significant savings or wealth – that would make sense. But dividing -\$98,000 of community debt that I out of courtesy took solely on myself, and trying with lies and falsifications to squeeze from me extra \$6,000 (knowing clearly that I do not have any savings at the moment to get these money, and I provided all my bank statements to show my real financial situation) – it just doesn't make any sense.

But again, Judge has power to squash self-represented party, and feels above the Law.

What really bothers me is that Judge Flint rules so bluntly in favor of Respondent even in such obvious questions like community assets and debts, that there is no trust in Judge Flint at all. It is impossible to trust Judge Flint in any question – especially seeing how actively she manipulates court proceedings, falsifies court records and arrogantly makes absolutely meaningless, but bluntly harmful and wrongful orders.

10. Short video 9 - Judge overrules Petitioner's objection regarding falsified numbers of community expenses, presented by Respondent's attorney. Judge is looking at evidence, bank statement, with crossed out community expenses happened before date of separation, and grants Respondent's attorney falsified numbers <https://youtu.be/evow78qiM4g>

Personal note: again, such minor falsification and misconduct doesn't make any sense at all

11. Short video 10 - Judge interrupts and mutes Petitioner when Petitioner brings to attention of Court that Judge ordered Respondent's attorney to prepare orders after hearing, while Respondent's attorney is requested 2nd time to be Disqualified for unethical conduct and violation of professional and ethical standards <https://youtu.be/nJUuvGC3o0>

Personal note: Judge Flint denied first motion to Disqualify Respondent's attorney on 08/01/2023 without any consideration. Judge Flint continues persistently ordering Respondent's attorney to prepare findings and orders after hearing, despite those are completely falsified by Nancy L Roberts in favor of Respondent.

And of course Nancy L Roberts calls my 2nd motion to disqualify her for impermissible pressure on emergency screener and professional supervisors, unethical conduct and violating of professional and ethical standards, to be "meritless" motion.

I probably have to agree that it's meritless to try to request justice and law on the case where Judge Flint presides, who is suspected in bribery and always denies any my motion without any consideration. Even when Nancy L Roberts falsified findings and orders after hearing – those falsified orders were ordered by Judge Flint, who endorses violence and falsifications.

So well, any attempt to obey the Law and act legally in courtroom is just meritless

Next 4 recordings are just complete trial as is:

- 12. Full Trial Recording - Part 1 <https://youtu.be/oprPRI1mtEM>
- 13. Full Trial Recording - Part 2 <https://youtu.be/JfSyEpu5Exs>
- 14. Full Trial Recording - Part 3 https://youtu.be/-_ITqOOeYzc
- 15. Full Trial Recording - Part 4 https://youtu.be/R2_UBo-lW2g

III. CONCLUSION

Divorce should be no drama. It's a simple process, if follow the Court Rules and obey the Law. Parties split community debts, arrange custody and visitation schedules, and move on with their lives, supporting each other when it's needed.

Unfortunately, Respondent already complicated things by attempting to kill, and violently putting my 95 years old grandmom into terminal condition.

Respondent overcomplicated things by violent abduction of my son, despite my ask to give our son chance to live stress-free life in nurturing and supportive environment with healthy co-parenting, to stop beating our son, and allow our boy to recover from violence that Respondent already did. To retaliate me, Respondent abducted my son and blocked all contact with my child. She promised me to kill my grandmom (and put her into terminal condition), and threatened to abduct my son outside of the United States and "bury our child in Ukrainian soil so you will never see him again".

Violence of Respondent alone complicates things more than enough.

Judge Flint, whose role in the process is to facilitate divorce proceedings according to the Law, is knowingly and intentionally adding much more unnecessary stress and overcomplicating divorce process by massive falsifications of court records, making harmful and wrongful orders, and endorsing violence and lies.

By intentional harmful and wrongful orders Judge Flint endangered life of my son, who is already completely blocked from calls in undisclosed location. Judge Flint unreasonably removed signed emergency screener recommendations, facilitated child abduction outside of the United States with the series of obvious consecutive harmful and wrongful orders that go completely against safety and best interest of the child, against emergency screener recommendations, and against multiple pieces of evidence and witness statements.

In addition to this massive harm that Judge Flint already did, she intentionally and repetitively refuses to recuse 7 (SEVEN) times in a row, despite obvious and undeniable personal conflict of interest with Petitioner, and Judge's personal interest in outcome of the case, therefore repetitively violating CCP 170.1, 170.3.

Judge's role is to ensure that all parties have a fair opportunity to present their arguments and evidence.

With the Judge Flint it's opposite: more than 50 pieces of evidence and witness statements were never presented, but unreasonably ignored and removed from Court records. Expert opinions were completely ignored, child abduction prevention orders denied e (THREE) times, emergency screener recommendations are unreasonably removed.

Clear and supported by evidence request to Judge to relieve the case from her harmful influence was repetitively completely ignored, and now Judge retaliates to Petitioner for asking Judge to obey the Law.

I do not see any reasons why Judge Flint, who is knowingly and intentionally doing massive harm and misconduct, can preside over this case.

I also do not see any legal or ethical reasons why Judge may have right to endorse and enforce violence against minor child and defenseless 95 years old senior woman with disabilities. Same as why Judge may be facilitating child abduction outside of the United States by parent-abuser with documented history of child abduction. The only reasonable explanation could be – to get rid of witness of bribery, to ensure that child will never talk about what was seen by him when Judge was bribed. Which is obviously beneficial for both Judge, suspected in bribery, and Respondent, who threatened to "bury our child in Ukrainian soil".

Pursuant CCP 170.1, 170.3 Judge who has personal interest in the case, and who has personal conflict of interest with the party in the case, is legally obliged to recuse themselves, and allow another, impartial Judge to hear the matter.

But Judge Flint completely ignored CCP 170.1, 170.3 and retaliated to me, Petitioner in this case, ordering massive wrongful financial sanctions to force me into abyss of financial collapse from which I won't be able to pay for visits with my son.

I kindly ask Commission on Judicial Performance for help with restoring impartiality of Court process, and with protecting reputation of California Superior Court.

I kindly ask to remove Judge Flint, who is in repetitive violation of CCP 170.1, 170.3, and who confirmed her complete ignorance to the Law and Justice, from the case 22FL003144 (or from the Court), and to allow another impartial Judge to hear the matter.

Please feel free to reach me directly if any additional information needed:

Phone: (408) 518-0088,

Email: Constantine.Mars@gmail.com

Thank you for your prompt attention to this matter in such a challenging situation.

Sincerely,

DATED: November 16, 2023

KOSTIANTYN MARS

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04 - Complaint to Commission on Judicial Performance 09-16-2023.pdf
02 - Response to Judicial Commission Regarding Recusal Hearing 2023-10-25.pdf
01 - Response to Judicial Commission With Video Recording 2023-11-13.pdf
10 - 2023-10-25 Minute Order.pdf
05 - Motion to Recuse Judge for Cause 2023-10-23.pdf
03 - Letter from Judicial Commission with Request about hearing 2023-10-25.pdf
08 - 2023-10-24 Judge Flint Order Striking bw.pdf
07 - Evidence for Motion to Recuse For Cause 2023-10-23 color.pdf
09 - 2023-10-25 Judge Flint sanctioning Petitioner \$200 per month payments for requesting court reporter.pdf
06 - Evidence for Motion to Recuse For Cause 2023-10-23 bw.pdf